

Data Breach Notification Procedure

Legal notification workflow — Texas and multi-state considerations

Document ID: BVT-IRP-052

Version: 1.0

Issued: July 02, 2026

Effective Date: _____

This procedure is an operational guide, not legal advice. Notification decisions for any suspected breach of personal information are made WITH breach counsel. Engage counsel early — attorney-client privilege can protect the investigation.

Step 1 — Determine Whether Personal Information Is Involved

Texas defines "sensitive personal information" (Tex. Bus. & Com. Code § 521.002) to include an individual's name combined with SSN, driver's license/government ID number, or financial account/card number with access code — and separately, information about health condition or treatment. Inventory exactly what data elements were, or may have been, accessed or acquired, and for how many individuals, in which states.

Step 2 — Assess with Counsel

- Was data acquired or merely accessible? Encrypted (with keys uncompromised)? Evidence basis for scoping (logs, forensics)?
- Which states' residents are affected? Each state's law applies to its residents; thresholds and deadlines differ.
- Contractual duties: client MSAs, DPA (72-hour client notice — BVT-LGL-011), BAAs (HIPAA breach rules), cyber insurance notice requirements.
- Regulatory overlays: HIPAA (60-day individual notice; HHS reporting), payment card brands (PCI), FTC Safeguards for covered entities.

Step 3 — Texas Notification Requirements (Baseline)

- Notify affected Texas residents without unreasonable delay and no later than 60 days after determining a breach occurred (Tex. Bus. & Com. Code § 521.053).
- If 250 or more Texas residents are affected: notify the Texas Attorney General no later than 30 days after determination (electronic form on the OAG website).
- If more than 10,000 individuals must be notified: also notify consumer reporting agencies.
- Delay is permitted at law enforcement's request; document any such request in writing.

Step 4 — Notification Content and Delivery

- Individual notices (drafted with counsel) generally include: what happened, what data was involved, what you are doing, what recipients can do (credit monitoring/fraud alerts where appropriate), and contact information.
- Method: written notice; substitute/email notice only where statute permits.
- Coordinate timing so clients, regulators, and individuals are informed in the correct order; prepare inbound-question handling before notices go out.

Step 5 — Record and Improve

Retain the full decision record: data-element analysis, counsel guidance, notification copies, dates, and recipient counts (minimum 5 years). Feed lessons into the Incident Report (BVT-IRP-048) corrective actions.

Quick Reference	Deadline
Client notice under BVTech DPA	Without undue delay; ≤ 72 hours after confirmation
Texas residents	≤ 60 days after breach determination
Texas Attorney General (≥ 250 TX residents)	≤ 30 days after determination
HIPAA (as Business Associate, to Covered Entity)	≤ 60 days; per BAA BVT-LGL-010: ≤ 10 business days
Cyber insurer	Per policy — typically 'as soon as practicable'; check policy